

HOUSE No. 2211

The Commonwealth of Massachusetts

PRESENTED BY:

Natalie M. Higgins

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act modernizing the six fundamental rights.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/15/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/28/2025</i>
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>2/10/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/11/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/4/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>4/4/2025</i>
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>7/17/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>7/22/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>7/24/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>7/29/2025</i>
<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>7/29/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>7/29/2025</i>

HOUSE No. 2211

By Representative Higgins of Leominster, a petition (accompanied by bill, House, No. 2211) of Natalie M. Higgins and others relative to persons receiving services from the Department of Mental Health. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act modernizing the six fundamental rights.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 23 of Chapter 123 of the General Laws, as so appearing, is hereby
2 amended by inserting the following words: “or video phone with transcription capabilities as
3 needed for accessibility” following “(a) reasonable access to a telephone” and, in the same
4 section, inserting “including access to one’s own phone or similar device to use and access
5 information contained therein” following: “to make and receive confidential telephone calls and
6 to assistance when desired and necessary to implement such right” and, in the same section,
7 inserting “or other uses of a personal device” following “that such calls”.

8 SECTION 2: Section 23 of Chapter 123 of the General Laws shall further be amended by
9 inserting the following words: “and electronic mail” following: “(b) to send and receive sealed,
10 unopened, uncensored mail” and, in the same section, inserting “postal or other paper”
11 following: “a particular person’s” and, in the same section, inserting “A computer or similar
12 device” following: “contraband.” And, in the same section, removing ‘reasonable quantities’

13 following: “stamps in” and replacing it with “quantities great enough to provide for reasonable
14 daily access”; And, in the same section, inserting “setting up and using e-mail or similar
15 messaging applications” following: “Reasonable assistance shall be provided to such person in”;
16 and, in the same section, inserting “Where an individual has available and wishes to bring a
17 personal computer or similar device, this too shall be allowed with reasonable daily access
18 given”.

19 SECTION 3: Section 23 of Chapter 123 of the General Laws shall further be amended by
20 inserting the words: “even if not within normal visiting hours” following: “(c) to receive visitors
21 of such person's own choosing daily and in private, at reasonable times. Hours during which
22 visitors may be received may be limited only to protect the privacy of other persons and to avoid
23 serious disruptions in the normal functioning of the facility or program and shall be sufficiently
24 flexible as to accommodate individual needs and desires of such person and the visitors of such
25 person”.

26 SECTION 4: Section 23 of Chapter 123 of the General Laws shall further be amended by
27 inserting the words: “in a manner also appropriate to their stated gender identity and with
28 reasonable access to culturally relevant personal care products” following: “(d) to a humane
29 psychological and physical environment. Each such person shall be provided living quarters and
30 accommodations which afford privacy and security in resting, sleeping, dressing, bathing and
31 personal hygiene, reading and writing and in toileting”.

32 SECTION 5: Section 23 of Chapter 123 of the General Laws shall further be amended by
33 inserting the words: “peer supporter” and “recovery coach” following: “(e) to receive at any
34 reasonable time as defined in department regulations, or refuse to receive, visits and telephone

calls from a client's attorney or legal advocate, physician, psychologist, clergy member” and, in the same section, inserting ‘therapist, or any other community mental health, medical or holistic provider” following: “social worker”.

SECTION 6: Section 23 of Chapter 123 of the General Laws shall further be amended by inserting: “The Department shall also promulgate regulations for implementation of fines no less than \$100.00 per incident applicable upon findings that a facility has continued to commit violations of any right(s) named anywhere in this Section after having been given fair warning and reasonable opportunity to correct and shall further establish regulations for the management of a fund where all fines shall be held and then equitably distributed by a formal but expeditious request process to benefit the individual or collective needs of people staying in any facility that fall under this law” after “and the reasons therefor shall be documented with specific facts in the client's record and subject to timely appeal” and, in the same section, insert: “or any other right mentioned in Section 23” following: “Any dispute or disagreement concerning the exercise of the aforementioned rights in clause (a) to (f)”.

SECTION 7: Section 23 of Chapter 123 of the General Laws shall further be amended to include: “The Department will also be responsible for contracting out to one or more qualified legal or advocacy organization a minimum of three new full-time positions wherein those so employed will be responsible for investigating complaints, assessing fines and collectively managing distributions for the related fund”, directly following the addition named in Section 5.

SECTION 8: As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“CONFIDENTIAL CALLS”, the ability to make phone calls outside of and far enough away from any common use or staff-occupied space – preferably enclosed and free of expectation of routine interruptions - that a reasonable person would confidently agree that the content of a call could not be overheard

“EQUITABLE”, considering reasonable access and distribution across facilities, geography and needs as much as funds allow and with the understanding that equity is not the same as equal

“LEGAL ADVOCATE”, individual reasonably informed and able to support someone else to become informed about and exercise their legal rights and not necessarily someone who has been through formal legal training

“PEER SUPPORTER”, individual working in a designated peer role including peer advocates, community bridgers, Recovery Coaches, Certified Peer Specialists and similar.

“SERIOUS DISRUPTIONS”, interference that would lead either to significant safety risks and/or inability for employees to carry out core responsibilities across the unit and not to be interpreted as simply interfering with an individual’s participation or similar

“RECEIVE OR REFUSE TO RECEIVE”, in an environments where a facility employee monitors or otherwise controls entry, this shall be understood to mean asking the person if they do or do not want a visitor before the visitor is granted access to the facility

“STATED GENDER IDENTITY”, someone’s gender identity as they have stated it as opposed to sex stated in their medical records

76 “CULTURALLY RELEVANT PERSONAL CARE ITEMS”, items that are formulated,
77 developed and marketed to adequately care for particular skin and hair types, etc. May also
78 include gender affirming care items like binders and similar; Should also be assumed to include
79 consistent access to tampons, sanitary pads and other basic hygiene items.